RAMBAM'S INTRODUCTION TO THE MISHNAH

The Whole Torah in One Book: The Rambam's Introduction to the Mishneh Torah

Rambam's Introduction to the Mishnah (2025)

Source: The Rambam's Introduction to the Mishneh Torah (1177)

Shiur: The final class of the summer term, following the series on the Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 22 July 2025 (during the Three Weeks)

These notes are based on the Sofer.ai transcript of the recording.

The Four Great Introductions

Whenever he can, the Rambam uses his writing as **a springboard for principles of faith and character**. Four places stand out:

Introduction	Focus	Status
To Avot (*Shemonah Perakim*)	**Character** and behaviour	Done last year, in depth
To the Mishnah	**Tradition and the Oral Law** (with digressions on prophecy and the purpose of life)	**This term**
To Perek Helek (Sanhedrin ch. 10)	**Theology and philosophy**: mistaken beliefs, the **13 Principles**, much more	**September–December**
To the Mishneh Torah	**Short and self-contained**	**Tonight**

Written in **1177**, when the Rambam was **about 40**. Some of it overlaps the Introduction to the Mishnah, "which is why it's so appropriate to do it now"; some is new.

Part 1: An Opening Verse, and a Nod to His Critics

אז לא אבוש בהביטי אל כל מצותיך (Tehillim 119)

Then I shall not be ashamed, when I gaze at all Your commandments.

Why open his halachic *magnum opus* (the Moreh is his philosophical one) with this verse? "Perhaps he recognised **this book wouldn't go down well with everyone**. And indeed it did not."

- Some of the Rambam's books were **burned**, because **Rabbeinu Yonah of Gerona** thought some views (in the Moreh) heretical. "**Later he recognised he was wrong.**"
- **The Mishneh Torah itself was criticised**: by **Rav Pinchas HaDayan** (whose letter we learned this winter), and by **the Ra'avad**: *how can you write a book without sources?* "**And yet the Ra'avad spent an enormous amount of time writing a gloss on the entire Mishneh Torah.** So he clearly thought it significant."

"There's no halachic work like it, in **brevity, clarity and system**." So the verse is "**like a nod to those who will criticise him**: *I'm not embarrassed. I'm confident I'm doing the right thing. Here I am.*"

Part 2: The Written and the Oral Torah

Every mitzvah given at Sinai came **with its explanation.** **כל המצוות שנתנו לו למשה בסיני, בפירושן נתנו.**

(Ki Tisa): **ואתנה לך את לחת האבן והתורה והמצוה**

its explanation, the **Oral Torah**. We're commanded to = **המצוה**; the **written** Torah = **התורה** keep the Torah **according to the mitzvah**.

- **Moshe wrote the whole Torah in his own hand before he died**, gave **a scroll to each tribe**, and put **a thirteenth in the Ark** as testimony: **לקח את ספר התורה הזה ושמתם אתו מצד ארון ברית ה׳** (Vayelech).
- **The explanation he did not write.** He taught it to **the elders, Yehoshua and all Israel**: **את כל הדבר אשר אנכי מצוה אתכם אתו תשמרו לעשות**. **Hence: *Oral* Torah.**

(Recall from the Introduction to the Mishnah: the **four-times teaching**, Eruvin 54b.) Moshe taught it **in his beit din to the seventy elders**; **Elazar, Pinchas and Yehoshua** received it directly; **to Yehoshua, his student, he handed it on and charged him with it.**

Part 3: Forty Generations, from Moshe to Rav Ashi

"**I don't know anyone who did this before the Rambam**: the whole transmission, all the way down."

	Received from
Yehoshua	Moshe
The elders	Yehoshua
Eli	The elders and **Pinchas**
Shmuel	Eli and his beit din
David	Shmuel
Achiyah HaShiloni	A **Levi** who left Egypt and **heard Moshe as a child** (Bava Batra): the Levites didn't die after the spies, and he lived very long. Received from David
Eliyahu → Elisha → Yehoyada HaKohen → Zecharyah → Hoshea → Amos → Yeshayahu → Michah → Yoel → Nachum → Chabakuk → Tzefanyah → Yirmeyahu	Each from the one before, **and his beit din**
Baruch ben Neriyah	Yirmeyahu. He witnessed the destruction, went with the exiles **to Bavel**, and carried on teaching there
Ezra and his beit din	Baruch

The Men of the Great Assembly

Ezra's beit din = אנשי כנסת הגדולה: **Chaggai, Zecharyah, Malachi, Daniel, Chananyah, Mishael, Azaryah, Nechemyah ben Chachalyah, Mordechai, Zerubavel**, and many others, **120 elders** in all. **The last and youngest: Shimon HaTzaddik**, **Kohen Gadol** after Ezra, who received the whole Oral Torah from them.

The pairs (*Zugot*)

From **Antigonos of Socho** (about 100 BCE): **two** leaders per generation, the **Nasi** (head of the academy) named first, then the **Av Beit Din**. "This lasts about 150 years."

Pair	
Yosei ben Yoezer and **Yosei ben Yochanan**	The first *zug*
Yehoshua ben Perachyah and **Nittai HaArbeli**	
Yehudah ben Tabbai and **Shimon ben Shetach**	
Shemaya and **Avtalyon**	***Gerei tzedek*, righteous converts**
Hillel and **Shammai**	

Then Rabban Yochanan ben Zakkai and **Rabban Shimon, Hillel's son**. "Did you notice? **The first with a title.** Everyone until now, all the prophets too, had none: they were **above titles**. Now it's **רבן**: not yet *Rabbi*, still higher."

Rabban Yochanan's five students

Rabbi Eliezer HaGadol, Rabbi Yehoshua, Rabbi Yosei HaKohen, Rabbi Shimon ben Netanel, Rabbi Elazar ben Arach.

- **Rabbi Akiva ben Yosef** received from Rabbi Eliezer HaGadol. (His father was a convert.)**How to spell Akiva?** "The Rambam writes **עקיבה, with a *heh***. There's a big discussion in **Hilchot Gittin** (and for the **ketubah**): *heh* or *aleph*? **Sephardim generally write it with a *heh*; Ashkenazim with an *aleph*.**"
- **Rabbi Yishmael** and **Rabbi Meir, son of a righteous convert**, received from Rabbi Akiva. Rabbi Meir's colleagues: **Rabbi Yehudah, Rabbi Yosei, Rabbi Shimon, Rabbi Nechemyah, Rabbi Elazar ben Shammua, Rabbi Yochanan HaSandlar, Shimon ben Azzai, Rabbi Chanina ben Teradyon**. Rabbi Akiva's colleagues: **Rabbi Tarfon, Rabbi Shimon ben Elazar, Rabbi Yochanan ben Nuri**.
- **Hillel's line:** Hillel → **Shimon** → **Rabban Gamliel the Elder** → **Rabban Shimon** → **Rabban Gamliel** → **Rabban Shimon** → **Rabbi Yehudah, "Rabbeinu HaKadosh"**, who also received from **Rabbi Elazar ben Shammua**.

Part 4: The Digression on Rabbeinu HaKadosh

Instead of continuing to the Amoraim, the Rambam **stops to talk about Rebbi**. Why? "**He loved Rabbeinu HaKadosh.** And notice he calls his own book ***Mishneh* Torah**. I think he saw **similarities between himself and Rabbi Yehudah HaNasi**." (The Rabbi's view: "I've got no source for this.")

מימות משה רבנו ועד רבנו הקדוש לא חברו חבור שמלמדין אותו ברבים בתורה שבעל פה.

From Moshe to Rebbi, **no one composed a book of the Oral Torah to teach in public.**

But in every generation, the head of the court or the prophet would write for himself a record of the traditions he heard from his teachers, and teach them orally in public.

Writing down the Oral Torah

"**Notice**: the Rambam seems to say **there's no problem writing down the Oral Law.** We know Rebbi had to make a decision, despite the prohibition, to write it. But the prohibition is on writing it **en masse, to teach from**. **Private notes** to remember and transmit properly were always fine."

Each leader wrote according to his ability: what he'd heard, and **the new laws each generation derived by the 13 principles** and the Great Court agreed. **Then Rebbi gathered it all**, every tradition, law and explanation from Moshe on, **and composed the Mishnah**, **taught it publicly**, and it spread to **all Israel**.

Why?

> **לפי שראה שהתלמידים מתמעטים והולכים, והצרות מתחדשות ובאות, ומלכות הרשעה פושטת בעולם ומתגברת, וישראל מתגלגלין והולכין לקצוות.**

He saw **students dwindling**, **new troubles coming**, **the wicked empire spreading and growing**, and **Israel wandering to the ends of the earth**.

So he made **one book in everyone's hands**, to be learned **quickly** and **not forgotten**, and spent **the rest of his life** teaching it with his court.

"**I believe the Rambam sees himself** (not spiritually, but in identity) **as a kind of Rebbi.** Rebbi gathered the Oral Torah into the Mishnah around **250**; the Rambam does the same **a thousand years later, in 1177**. **That's why he calls it *Mishneh Torah*.**"

Part 5: From Rebbi to Rav Ashi

From Rebbi	His sons **Shimon and Gamliel**, **Rabbi Afes**, **Rabbi Chanina bar Chama**, **Rabbi Chiya**, **Rav**, **Rabbi Yannai**, **Bar Kappara**, **Shmuel**, **Rabbi Yochanan**, **Rabbi Hoshaya**: **eleven** greats
Rabbi Yochanan	Young in Rebbi's day; later studied under **Rabbi Yannai**
Rav	Also from Rabbi Yannai. **Composed the Sifra and Sifrei**
Shmuel	From Rabbi Chanina bar Chama
Rabbi Chiya	**The Tosefta**
Rabbi Hoshaya and Bar Kappara	**Baraitot**
Rabbi Yochanan	**The Yerushalmi**, in Eretz Yisrael, **about 300 years after the destruction** (c. 370)
From Rav and Shmuel (Bavel)	**Rav Huna, Rav Yehudah, Rav Nachman, Rav Kahana**
From Rabbi Yochanan (Israel)	**Rabbah bar bar Chanah, Rabbi Ami, Rabbi Asi, Rav Dimi, Rav Avin**
From Rav Huna and Rav Yehudah	**Rabbah and Rav Yosef**
From Rabbah and Rav Yosef	**Abaye and Rava**
...	**Rav Ashi and Ravina**
Mar bar Rav Ashi	His father Rav Ashi, and Ravina

נמצא מרב אשי עד משה רבנו ארבעים איש.

From Rav Ashi back to Moshe: forty men.

Over about 2,000 years: from Sinai (2448, **3,338 years ago**) to **Rav Ashi, about 500 CE**. The Rambam lists them backwards, ending **...Yehoshua, Moshe Rabbeinu, from the mouth of Hashem, God of Israel.** "**Incredible.**"

Where did he get it all? "From **Tanach**, from **Avot** chapter 1, and from what's scattered through **the Mishnah and Gemara** about who learned from whom. Remember his ten appendices last week. **There are small disagreements, but it's basically accepted.**"

"And thousands and tens of thousands heard from them." These forty were **the heads of their generations** (heads of academies, Exilarchs, Sanhedrin), but **thousands** of others learned with them.

Why list them?

1. **Everything in the Mishneh Torah goes back to Moshe.** It all comes from the **written** Torah or the **Oral** Torah (Mishnah and Gemara), and **anything else he labels** (*a later authority said*, *a custom*). "The problem with books today is they put everything together and **you don't know the origin**. *No kitniyot on Pesach*: there are many examples."
2. **The answer to his critics.** *Why no sources?* "**Because it all comes back to Moshe.** I don't need to cite them."

Part 6: What the Talmuds Contain

Rav Ashi composed the Bavli in Shinar (Babylonia), about **a century after Rabbi Yochanan's Yerushalmi** (today dated **about 495 CE**). Both explain the Mishnah, and with the Tosefta, Sifra and Sifrei they clarify **forbidden and permitted, pure and impure, liable and exempt, valid and invalid**, plus:

גזרות, fences	**ושמרתם את משמרתי**: **עשו משמרת למשמרתי** (e.g. poultry and milk)
תקנות, enactments	Good practice, binding but not a fence (e.g. **prozbul**). "**The Rambam is very particular** about the difference between a *gezerah* and a *takkanah*"
מנהגות, customs	Each court's safeguards: binding too, **לא תסור מן הדבר אשר יגידו לך ימין ושמאל**
Derived laws	By the 13 principles, ruled by the Great Court of the generation

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Part 7: Why the Talmud Binds Us, and Nothing After It Does

נמצא רבינא ורב אשי וחבריהם סוף גדולי חכמי ישראל מעתיקי תורה שבעל פה: the last great transmitters of the Oral Torah, whose *gezerot*, *takkanot* and customs **spread through all Israel, wherever they lived.**

After Rav Ashi, **Israel scattered further**, to **distant islands** ("places like England"); roads became unsafe; **Torah study dwindled**; no more yeshivot of thousands, just **"a few survivors**

whom Hashem calls," in each city and land.

Any beit din after the Talmud, in any land, that decreed, enacted or set a custom: **its acts did not spread to all Israel**, because of distance, bad roads, and because **the Great Sanhedrin of 71 had ceased** years before the Talmud was compiled.

	The Talmud	After the Talmud
Authority	**"All the Sages of Israel, or most of them,"** who received **person from person, back to Moshe**	Local courts
A *gezerah* or custom	**Binding on every Jew, everywhere; we compel every city**	**Binds only its city.** One city **can't be forced** to adopt another's practice; a court **needn't adopt** another's decree
A later scholar with better proofs	**Irrelevant**: "you can have the best proof; the Talmud is **the Sanhedrin**, you must accept it"	**Follow whoever's reasoning is stronger**, earlier or later: the 700 scholar can override the 600 one

A modern example: "A beit din in **New Square** declared it **forbidden to touch an iPhone**. That's a *gezerah*. **Does it apply to me? No. לא פשטו מעשיו בכל ישראל.**"

The Sanhedrin in exile: after the destruction it moved **through ten places** in the Land, until about **425 CE**. But since **everything in the Talmud was accepted by all Israel**, its authority holds.

Why we still mourn on Tisha B'Av

"We have a sovereign state. Why mourn?"

"We don't have the Temple. **But greater than that, we don't have a Sanhedrin. We don't have a supreme court.** Our Torah, since 500 CE, **has been fossilised.** The beauty of the Sanhedrin was that it could **interpret the Torah as each generation needed**, with authority. **Our hands are tied.**"

Second-day Yom Tov. "People ask why we keep it: *we know the calendar exactly.* **You're right. It doesn't make sense, and I'd be the first to say we don't need it.** The problem is **the Gemara says we must, and the Gemara is the Sanhedrin.** Until you give me a new Sanhedrin, we keep it. **If Mashiach comes before Tisha B'Av** and we have a Sanhedrin, it may decide we don't need it."

Part 8: The Geonim, and the Problem

Everyone after the Talmud = the *Geonim*: in **Eretz Yisrael, Shinar (Babylonia), Spain and France**. They explained the Talmud because:

- **its way is very deep**, and

- it's in **Aramaic mixed with other languages**: clear to Babylonians when composed, but **understood by no one elsewhere**, nor in Babylonia by the Geonim's time.

What they produced:

- **Responsa**, collected into books

- **Commentaries** on single laws, difficult chapters, whole tractates

- **Halachot pesukot**: decided law, for those who **can't reach the Talmud's depths**

"**Holy work**, from the Talmud's close **until now**": **1,108 years after the destruction**, i.e. **1177**.

No chain for this period. "Notice: he doesn't trace the Sages **from 500 to his own time**. He could have. **It makes no difference**: there's no longer a binding transmission. Everyone interprets on his own."

"In our time, troubles have multiplied"

ובזמן הזה תכפו צרות יתרות... ואבדה חכמת חכמינו ובינת נבונינו נסתתרה.

Even **the Geonim's** explanations, which they thought plain, **have become hard**, and few understand them properly. **"Needless to say the Talmud itself"**: Bavli, Yerushalmi, Sifra, Sifrei, Tosefta, which require **a broad mind, a wise soul and a long time**.

Part 9: The Mishneh Torah

ומפני זה נערתי חצני אני משה בן מימון הספרדי, ונשענתי על הצור ברוך הוא, ובינותי בכל אלו הספרים.

So I, Moshe son of Maimon the Sefaradi, girded my loins, relied on the Rock, and studied all these books, and decided to compose from them, on **forbidden and permitted, impure and pure, and all the Torah's laws**:

כולן בלשון ברורה ודרך קצרה	**Clear language, concise**
בלי קושיא ובלי פירוק	**No questions and answers**
ולא זה אומר בכה וזה אומר בכה	**No "this one says, that one says"**
אלא דברים ברורים קרובים נכונים	**Only clear, accessible, correct rulings**, as they emerge from everything from Rebbi until now

"**What an incredible statement to make.**"

"No other book"

כללו של דבר, כדי שלא יהא אדם צריך לחבור אחר בעולם בדין מדיני ישראל, אלא יהא חבור זה מקבץ לתורה שבעל פה כולה, עם התקנות והמנהגות והגזרות שנעשו מימות משה רבנו ועד חבור התלמוד, וכמו שפירשו לנו הגאונים.

In short: so that no one needs any other book in the world for any law of Israel. This one gathers the whole Oral Torah: every takkanah, custom and decree from Moshe to the Talmud, as the Geonim explained them.

לפיכך קראתי שם חבור זה "משנה תורה", לפי שאדם קורא בתורה שבכתב תחלה, ואחר כך קורא בזה, ויודע ממנו תורה שבעל פה כולה, ואינו צריך לקרות ספר אחר ביניהם.

Therefore I called it *Mishneh Torah*, the "second Torah": read the written Torah first, then this, and you know the whole Oral Torah, with no need for any other book.

"**He was criticised for this line.**"

What he did *not* mean

As he wrote in the **letter to Rav Pinchas HaDayan**: he **never** said not to study Mishnah and Gemara. **It's a summary.** To go **in depth**, study Mishnah, Gemara, Geonim, Tosefta, baraitot.

"**And it's true.** If you know **Tanach** and the **Mishneh Torah** inside out, **you can't really go wrong**: you know the basics of everything. And it doesn't take as long as the whole of Shas. **That's why he called it the second Torah.** Remarkable."

The structure

Divided by **topic** (*halachot*), each into **chapters**, each into numbered **halachot**, "so they can be ordered in one's memory." Some sections cover one mitzvah with many details; others, many mitzvot on one subject. Named **by topic**, not by number of mitzvot.

613 mitzvot: 248 positive, like **the limbs of the body**, and **365 negative**, like **the days of the solar year**.

Summary

1. **Opening verse, אז לא אבוש**: a confident nod to critics (Rabbeinu Yonah, Rav Pinchas, the Ra'avad, who glossed it anyway).
2. **Written Torah = התורה; Oral = המצוה.** Moshe wrote 13 scrolls; the explanation he **taught**.
3. **Forty generations from Moshe to Rav Ashi**, all named: prophets, the **Great Assembly** (120, last **Shimon HaTzaddik**), the **Zugot**, the **first titles** (Rabban), Rabbi Akiva (**עקיבה with a *heh***), **Rebbi**, the Amoraim. It shows **everything in the Mishneh Torah goes back to Sinai**: hence no need for sources.
4. **Rebbi** wrote the Mishnah because students dwindled and exile spread. Private notes were always allowed. **The Rambam saw himself as a Rebbi a thousand years on.**
5. **The Talmud binds all Israel**: accepted by all, the last link of the chain, the final **Sanhedrin**. **Nothing after it does**, beyond its locality (**New Square's iPhone ban**); later scholars are judged **on their reasoning**.
6. **Without a Sanhedrin our hands are tied**: why **Tisha B'Av** still matters, and why we keep **second-day Yom Tov**.
7. **The Geonim** explained, but by 1177 even they were hard. So: ***Mishneh Torah***, clear, concise, no disputes, **"no other book needed,"** as a **summary**, not a replacement for study. **613 = 248 + 365.**

Coming Up

The summer break, then from **September**: the **Introduction to Perek Helek**, "a very philosophical work," and **the principles of faith**.

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